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January 7, 2026

**VIA U.S. MAIL CERTIFIED MAIL**

The Honorable Pam Bondi
Attorney General of the United States
U.S. Department of Justice
950 Pennsylvania Avenue, NW
Washington, DC 20530-0001

**RE: COMPREHENSIVE SUPPLEMENTAL DEMAND FOR PRESERVATION OF ALL ELECTRONICALLY STORED INFORMATION**

**Kevin D Turnage v. Robert F. Kennedy Jr et al Case No. 2025-CV-03367-PHX-SMB**

Dear Counsel:

This letter supplements Plaintiff's prior preservation notice(s) already transmitted in this matter and serves as a formal and comprehensive demand for the immediate preservation of all potentially relevant electronically stored information ("ESI") and other evidence. This demand is intentionally broad to ensure the complete preservation of all data necessary to depict a full and accurate picture of the issues in this case. It specifically addresses, but is not limited to, all forms of digital communications, including those conducted on **both government-issued and personally owned devices used for government business (BYOD).**

**1. Comprehensive Scope of Electronically Stored Information (ESI) to be Preserved**

Please take immediate steps to preserve all ESI in its native format with all metadata and file structure intact. This preservation obligation is broad and is not limited by a custodian's own judgment of relevance. The ESI to be preserved includes, but is not limited to, the following categories:

- **All Forms of Communication:**
  - **Emails:** All emails from both official and any personal accounts used for work, including drafts, sent items, received items, deleted items, trash/recycle bin folders, and all archives (.pst files or otherwise).
  - **Mobile Communications:** SMS/MMS, iMessage, and messages from all third-party applications including WhatsApp, Signal, Telegram, Facebook Messenger, and Google Chat, located on **any and all mobile devices used for government business, including both government-issued and personal/BYOD cell phones.**
  - **Collaboration Platforms:** All data from platforms such as Microsoft Teams, Slack, Google Workspace, and SharePoint, including all public and private channel communications, direct messages, files, wikis, and complete edit/version histories. This demand explicitly includes all communications and data created or accessed via mobile applications for these platforms on **both government-issued and personal devices.**
  - **Voicemails:** All voicemail audio files and any associated transcriptions or metadata from **both government-issued and personal/BYOD devices** used for work.
  - **Calendar Information:** All calendar appointments, meeting invitations, and related data, including meeting titles, attendee lists, agendas, notes, and any attachments.
- **Documents and Data:**
  - All drafts, final versions, and revisions of documents, spreadsheets, presentations, databases, and notes (e.g., Microsoft Word, Excel, PowerPoint, OneNote, PDF files).

- **System and User-Generated Data:**
  - **HR Information Systems (HRIS) Data:** All records related to Plaintiff, including performance reviews, disciplinary records, complaints, commendations, payroll data, timekeeping and leave records, and promotion/transfer requests.
  - **Project Management & Tracking Data:** All information within tools such as Jira, Asana, Trello, or similar platforms.
  - **Access Logs:** All electronic logs documenting building/facility access (keycard/badge swipes), computer/network logins, VPN connection history, and remote access sessions.
  - **Web Browser History:** All internet and intranet browsing history from government-issued devices.
- **Multimedia and Recordings:**
  - All audio and video recordings of meetings, calls, or presentations (e.g., from Zoom, Microsoft Teams, Webex), including any chat logs associated with such recordings.
  - All photographs, videos, and audio files, including all attachments to communications, stored on **both government-issued and personal/BYOD devices.**
- **Geolocation Data:**
  - Location data from **both government-issued and personal/BYOD mobile devices**, applications, or government vehicle logs, where relevant.

**2. Scope of Devices, Systems, and Storage Locations**

The duty to preserve applies to all data described above, regardless of its physical or virtual location. This includes, but is not limited to, ESI stored on:

- **All End-User Devices:** Desktops, laptops, tablets, and mobile phones (**both government-issued and personal/BYOD**).
- **Removable Storage Media:** External hard drives, USB flash drives, CDs, DVDs, and any other form of removable media.
- **Cloud Storage:** All cloud-based storage services, whether official (e.g., OneDrive, Google Drive, AWS S3) or personal accounts used for government business (e.g., personal Dropbox, iCloud Drive, Google Drive accounts).
- **Network and Server Infrastructure:** All network shares, file servers, email servers (e.g., Exchange), SharePoint sites, and backend databases.
- **Third-Party Applications:** Data held within any third-party Software-as-a-Service (SaaS) applications used for official business.

**3. Custodians (Non-Exhaustive)**

This demand applies to all ESI created, received, or maintained by all custodians involved in any aspect of:

- placing Plaintiff on administrative/investigative leave, restricting access, and property return demands;
- investigations, discipline, or adverse action considerations;
- EEO/anti-harassment response to Plaintiff's report(s);
- FMLA/medical leave processing;
- OSC/OIG communications and any response to protected disclosures;
- communications about Plaintiff with PIMC/IHS/HHS leadership, HR, EEO, security, and counsel.

**4. Strengthened Preservation Instructions and Protocols**

To ensure the integrity and completeness of the ESI, you must immediately:

- **Suspend Auto-Delete and Retention Policies:** Immediately suspend or disable any and all auto-delete, ephemeral messaging, and data retention policies that could modify or delete relevant ESI. This includes, but is not limited to, disappearing messages in Signal/WhatsApp/Telegram on **both government and personal devices**, iPhone "auto-delete" settings on **any device used for work**, MDM/Intune compliance wipes, and automated retention settings in Teams, Slack, or email systems.
- **Preserve in Native Format:** Preserve all ESI in its native file format, with all metadata, formulas, and file structures fully intact and unmodified.
- **Forbid Alterations:** Issue a clear directive to all custodians forbidding any alteration, modification, re-naming, or deletion of potentially relevant files and data.
- **Maintain Chain of Custody:** Ensure that a clear and defensible chain of custody is maintained for any ESI that is collected, copied, or imaged.
- **Preserve Backups:** Preserve all relevant backup tapes, cloud backups (e.g., personal iCloud/Google accounts used to back up BYOD devices and official government cloud services), and device backups (e.g., computer-based mobile device backups) that may contain unique, relevant ESI. This includes preserving content prior to any device upgrades, replacements, trade-ins, or factory resets for **both government-issued and personal devices.**

**5. Spoliation Notice (Rule 37(e))**

Please be advised that the failure to preserve relevant ESI after receiving this notice—including loss through routine deletion, device replacement, remote wiping, failure to suspend auto-delete policies, or **failure to preserve government-related communications on personal/BYOD devices**—may constitute spoliation of evidence under Fed. R. Civ. P. 37(e). Such spoliation may warrant sanctions, including but not limited to adverse inference instructions, monetary penalties, or other remedial measures.

**6. Detailed Written Confirmation Requested**

Please provide detailed written confirmation within seven (7) days that Defendants have taken the steps outlined in this letter. Specifically, please confirm that you have:

- Distributed a formal, written litigation hold notice to all relevant custodians, explicitly detailing the preservation obligations and the broad categories of ESI and locations outlined in this letter, **with specific instructions regarding the preservation of data on personal/BYOD devices.**
- Suspended all automatic deletion and ephemeral messaging policies for all relevant custodians and data sources, **including for applications on both government and personal mobile devices.**
- Taken affirmative steps to preserve backups and ESI from sources at risk of loss, such as **both government-issued and personal mobile devices.**

Furthermore, we request that you provide a copy of the litigation hold notice that was distributed, redacting information protected by attorney-client privilege or the work product doctrine only where strictly necessary.

This comprehensive supplemental notice is not intended to be exhaustive, and Plaintiff reserves the right to expand the scope as additional custodians, systems, or data sources are identified through discovery.

Respectfully,

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